RESOLUTION NO. 2-26/27

BOARD OF TRUSTEES
ALUM ROCK UNION ELEMENTARY SCHOOL DISTRICT

RESOLUTION ORDERING AN ELECTION TO AUTHORIZE THE ISSUANCE OF SCHOOL BONDS, ESTABLISHING SPECIFICATIONS OF THE ELECTION ORDER, AND REQUESTING CONSOLIDATION WITH OTHER ELECTIONS OCCURRING ON NOVEMBER 3, 2026

WHEREAS, the Alum Rock Union Elementary School District (the "District") in Santa Clara County (the "County"), State of California, is committed to providing quality education to its students; and

WHEREAS, the District facilities continue to have pressing needs for construction and modernization of its school facilities including for repairs, upgrades, safety and health improvements which are critical in order to provide District students with the education they deserve in safe and modern environments; and

WHEREAS, in order to address these needs a local funding source must be identified as the State does not provide the District with funding to address these facilities needs; and

WHEREAS, the Board of Trustees of the District (the "Board") hereby determines that it is necessary to address the foregoing concerns, among others; and

WHEREAS, as such, the Board wishes to submit to the voters of the District a measure authorizing the issuance of general obligation bonds of the District; and

WHEREAS, on November 7, 2000, the voters of the State of California approved Proposition 39 ("Proposition 39"), which amended Articles XIIIA of the California Constitution ("Article XIIIA") to allow for the levy of *ad valorem* property taxes for the payment of bonded indebtedness of a school district, community college district or county office of education approved by at least 55 percent of the voters voting on such proposition; and

WHEREAS, upon the passage of Proposition 39, the Strict Accountability in Local School Construction Bond Act of 2000, being California Education Code Section 15264 and following (the "Act"), became operative; and

WHEREAS, in the judgment of the Board, it is advisable to call an election pursuant to the Act to submit to the electors of the District the question whether bonds of the District shall be issued and sold pursuant to the authority of Article XVI Section 18 of the California Constitution and Article XIIIA (together with the Act, the "Law") for the purposes authorized by the Law and as described in Appendix A hereto (the "Full Text of Bond Measure"); and

WHEREAS, under the Act, the election may be ordered at a primary or general election, a regularly scheduled local election at which all of the electors of the District are entitled to vote, or a statewide special election, upon a two-thirds vote of the Board; and

WHEREAS, the Board wishes to call an election in the District pursuant to the Law on November 3, 2026, which is the date of the statewide general election, and pursuant to Education Code Section 15121 and Elections Code Section 10400 and following, to request consolidation with any and all other elections held in the District on such date, and to request the Santa Clara County Registrar of Voters (the "County Registrar") to perform election services for the District; and

WHEREAS, in connection with the calling of a bond election and in accordance with Education Code Section 15100 subparagraph (c), the Board has obtained reasonable and informed projections of assessed property valuations that take into consideration projections (if any) of assessed property valuations made by the Santa Clara County Assessor; and

WHEREAS, pursuant to United States Income Tax Regulations Section 1.150-2, the Board desires to declare its official intention at this time that if the measure submitted to voters hereunder is successful and bonds are issued pursuant to such measure, that it intends to reimburse from said bond proceeds expenditures, if any, made by the District prior to the date of issuance of said bonds for the purposes described in the measure;

NOW, THEREFORE, THE BOARD OF TRUSTEES OF THE ALUM ROCK UNION ELEMENTARY SCHOOL DISTRICT DOES HEREBY RESOLVE, DETERMINE AND ORDER AS FOLLOWS:

Section 1. Recitals; Findings. The foregoing recitals are true and correct.

Section 2. Call for Election. The Board hereby orders an election and submits to the electors of the District the question of whether general obligation bonds of the District shall be issued and sold in the maximum principal amount of $100,000,000 for the purpose of financing the acquisition, construction, improving and equipping of District facilities, as more fully described in the ballot measure approved under Section 4 and attached hereto as Appendix A (Full Text of Bond Measure) and Appendix B (Abbreviated Text of Bond Measure), and paying all costs incident thereto. This Resolution constitutes the order of the District to call such election and shall constitute the "specifications of the election order" pursuant to Education Code Section 5322.

Section 3. Election Date; District Boundaries. The date of the election shall be November 3, 2026, and such bond election shall be held solely within the boundaries of the District. The boundaries of the District have not changed since the District's last election. The election is requested to be consolidated pursuant to Section 9 hereof.

Section 4. Purpose of Election; Ballot Measure. The purpose of the election shall be for the voters in the District to vote on a bond measure, a full copy of which is attached hereto as Appendix A and marked "Appendix A – Full Text of Bond Measure" (the "Full Text of the Measure"), containing the question of whether the District shall issue general obligation bonds for the purposes stated therein, together with the accountability requirements of Article XIIIA and the requirements of Section 15272 of the Act. The Full Text of the Measure, which commences with the heading "FULL TEXT OF BOND

MEASURE" and includes all of the text thereafter on Appendix A, shall be printed in the voter information pamphlet provided to voters, with such measure designation as is assigned to the measure by the County elections official. The County election official is permitted and requested to insert the assigned measure letter as appropriate in the Full Text of the Measure and other voting materials.

As required by Education Code Section 5322 and Elections Code Section 13247, the abbreviated statement of the measure to appear on the ballot is attached hereto as Appendix B and is marked as "Appendix B – Abbreviated Form of Bond Measure."

The President of the Board and the Superintendent are hereby separately authorized and directed to make any changes to the text of the bond measure as described herein to conform to any requirements of the Law or the County Registrar, to changes in applicable legal provisions, and upon the advice of its legal counsel. Any such changes shall be directed in writing by the Superintendent to the County Registrar.

Section 5. Authority for Election; Vote Requirement. The authority for ordering the election is contained in Section 15264 *et. seq.* of the Education Code, Article XVI Section 18(b) of the California Constitution and paragraph (b) subsection (3) of Article XIIIA. The authority for the specification of this election order is contained in Section 5322 of the Education Code. The vote passage requirement for the measure is least 55 percent of the voters voting on the measure.

Section 6. Proceeds for School Facilities. The Board certifies that the proceeds from the sale of the bonds will be used only for the purposes specified in Article XIII A, Section 1(b)(3) as further specified in Appendix A, and not for any other purpose, including teacher and administrator salaries and other school operating expenses. Further, as required by Article XIIIA, the Board hereby certifies that it has evaluated safety, class size and information technology needs in developing the list of school facilities projects set forth in Appendix A.

Section 7. Covenants of the Board upon Approval of the Bonds by the Electorate; Accountability Measures. As required by Article XIIIA, Section 15278 of the Act, and Government Code Section 53410, in the event 55 percent of the voters voting in the District approve of the Bonds, the Board shall:

(a) conduct an annual, independent performance audit to ensure that the funds have been expended only on the projects listed in Appendix A;

(b) conduct an annual, independent financial audit of the proceeds from the sale of the Bonds until all of those proceeds have been expended for the school facilities projects listed in Appendix A;

(c) establish and appoint members to an independent citizens' oversight committee in accordance with Sections 15278, 15280, and 15282 of the Act;

(d) apply the Bond proceeds only to the specific purposes stated in the ballot proposition;

(e) cause the creation of accounts into which bond proceeds shall be deposited; and

(f) cause the preparation of an annual report pursuant to Government Code Sections 53410 and 53411.

Section 8. Delivery of this Resolution. The Clerk of the Board is hereby directed to send a copy of this Resolution to (1) the County Registrar, and (2) the Clerk of the Board of Supervisors of the County (the "Clerk of the Board") for purposes of consolidation pursuant to Elections Code Section 10403. The Resolution shall be received by the County Registrar and the Clerk of the Board no later than 88 days prior to the election date, unless otherwise permitted by law.

The County Registrar is hereby requested to print the full text of the ballot measure in the ballot materials as it appears on Appendix A hereto and to provide all required notices of the election and other notices related thereto.

Section 9. Consolidation of Election; Request to Provide Services. The County Registrar and the Board of Supervisors of the County are hereby requested to consolidate the election ordered hereby with any and all other elections to be held on November 3, 2026 within the District pursuant to Division 10, Part 3 of the Elections Code.

Pursuant to Section 5303 of the Education Code and Section 10002 of the Elections Code, the Board of Supervisors of the County is requested to permit the County Registrar to render all services in connection with the election, including applicable provisions of Divisions 9, 10, 13 and 14 of the Elections Code, including as specified by Section 10418 of the Elections Code, for which services the District agrees to reimburse the County in full upon presentation of a bill from the County, such services to include the publication of a formal Notice of School Bond Election and the mailing of the sample ballot and tax rate statement (described in Section 9401 of the Elections Code).

Section 10. Approval of Tax Rate Statement. Pursuant to Elections Code Section 9400, a tax rate statement has been prepared in the form attached hereto as Appendix C, which form of Tax Rate Statement is hereby approved for inclusion in the sample ballot. The President of the Board, the Superintendent, or any written designee of the foregoing, are hereby separately authorized and directed to execute the tax rate statement, and to file said Statement with the County Registrar, in accordance with Section 8.

Section 11. Ballot Arguments. As provided in Elections Code Section 9501, any and all members of this Board are hereby authorized, but are not required, to act as an author of any ballot argument prepared in connection with the election, including a rebuttal argument.

Section 12. Maturity Limit of Bonds. The Bonds may be issued in one or more series by the District from time to time, and each series of Bonds shall mature not more than the legal limit at the time of such issuance thereof. The Bonds shall be issued under the Act, under the provisions of Section 53506 *et seq.* of the California Government Code, or under any other provision of law authorizing the issuance of general obligation bonds by school districts.

Section 13. State Matching Funds. The Board hereby finds that some of the projects identified on the Full Text of Measure may require additional funding such as State matching funds for completion. As such, the statement required by Education Code Section 15122.5 has been included and incorporated within the Full Text of Measure attached hereto which shall be reproduced in the sample ballot.

Section 14. Estimates Included in Ballot Materials. The measure authorized by this Resolution includes information presented to voters with respect to the amount of money required to repay issued bonds, the estimated rate of the approved tax per $100,000 of assessed valuation (*ad valorem* tax), and the estimated duration through which the proposed tax supporting bond repayment will be levied and collected, among others. Any estimates have been provided by the District in good faith based upon information currently available to the District, but depend on numerous variables which are subject to variation and change over the term of the District's overall facilities and bond financing plan. Such estimates and approximations are not intended by the Board, and shall not be interpreted or construed as additional restrictions on the District's bond program, bond issuances and related tax rate, and, other than the total principal amount of bonds authorized to be issued by the bond measure, do not represent legal maximums or additional limitations beyond applicable legal requirements. Furthermore, the abbreviated and condensed statement of the bond measure set forth in Appendix B, limited by State law to 75 words or less, does not limit the scope and broader and complete meaning provided in the Full Text of Bond Measure, set forth in Appendix A.

Section 15. Current Expectation Regarding Tax Rate. In connection this measure, the District has examined its outstanding debt, the scheduled amortizations of such debt, the District's most recent assessed valuation (being for fiscal year 2025-26) and projections of future assessed valuation during the expected term of the bonds to be issued. As a result thereof, it is currently expected that the bonds issued pursuant to this measure will not increase the current cumulative tax rate supporting District bonds above the 2025-26 tax rate of $97.80 per $100,000 assessed value. Note that such bonds will extend the existing tax rate for additional years. Notwithstanding the foregoing, general obligation bonds authorized by this measure are secured by an *ad valorem* tax unlimited as to rate or amount. Although the expectation is that tax rates will not increase as described herein, the District cannot anticipate all events which could result in assessed valuation changes including declines which may result in levies occurring post-bond issuance that are higher than the rate described in this section. Voters shall be informed that this expectation does not result in a cap or limit on the tax levies required to amortize bonds authorized by this measure through final maturity thereof.

Section 16. Reimbursement. Pursuant to United States Income Tax Regulations Section 1.150-2, the District hereby declares that it may (i) pay certain costs of the projects listed in Appendix A prior to the date of issuance of bonds and, in such case, (ii) intends to use a portion of the proceeds of bonds for reimbursement of said expenditures for the projects that are paid before the date of issuance of bonds.

Section 17. Official Actions. The President of the Board, the Vice President of the Board, the Superintendent and the Assistant Superintendent, Business Services are each hereby separately authorized and directed to execute and deliver to County officials any directions, requisitions, clarifications or other writings for the District, and to make any changes to the texts of the measure as described herein and in the tax rate statement, to

conform to any legal requirements or the requirements of the County Registrar, in order to cause the election to be held and conducted in the District as provided herein.

Section 18. Effective Date. This resolution shall take effect on the date of adoption hereof.

* * * * * * * *

The foregoing Resolution was adopted by the Board of Trustees of the Alum Rock Union Elementary School District of Santa Clara County, being the Board authorized by law to make the designations therein contained by the following vote, on July 16, 2026.

Adopted by the following votes:

AYES:

NOES:

ABSENT:

ABSTAIN:

_____
President of the Board

Attest:

_____
Clerk/Secretary of the Board

APPENDIX A

FULL TEXT OF BOND MEASURE

The Full Text of Measure to be printed in the voter guide starts below the line. The County Registrar is requested to insert the assigned measure letter or number.

FULL TEXT OF BOND MEASURE ___

BOND AUTHORIZATION

By approval of this Measure by at least 55 percent of the registered voters voting on the measure, the Alum Rock Union Elementary School District (the "District") will be authorized to issue and sell bonds of up to $100,000,000 in aggregate principal amount at interest rates not to exceed legal limits, and to provide financing for the specific types of school facilities projects listed in the Bond Project List described below, subject to all the accountability requirements specified below.

ACCOUNTABILITY REQUIREMENTS

Expenditures to address specific facilities needs of the District will be in compliance with the requirements of Article XIIIA, Section 1(b)(3), of the State Constitution and the Strict Accountability in Local School Construction Bonds Act of 2000 (codified at Education Code Sections 15264 and following.), all as further confirmed in the resolution adopted by the District Board of Trustees (the "District Board") placing this measure before voters (the "Resolution").

Evaluation of Needs. The District Board hereby certifies that it has evaluated safety, class size reduction, enrollment growth, and information technology needs in developing the Bond Project List shown below.

Independent Citizens' Oversight Committee. Following approval of this measure, the District Board will establish an Independent Citizens' Oversight Committee, under Education Code Sections 15278 and following, to ensure bond proceeds are expended only on the types of school facilities projects listed below. The committee will be established within 60 days of the date when the results of the election appear in the minutes of the District Board.

Performance Audits. The District Board will conduct annual, independent performance audits to ensure that the bond proceeds have been expended only on the school facilities projects listed below.

Financial Audits. The District Board will conduct annual, independent financial audits of the bond proceeds until all of those proceeds have been spent for the school facilities projects listed below.

Government Code Accountability Requirements. As required by Section 53410 of the Government Code, (1) the specific purpose of the bonds is set forth in this Full Text of the

Measure, (2) the proceeds from the sale of the bonds will be used only for the purposes specified in this measure, and not for any other purpose, (3) the proceeds of the bonds, when and if issued, will be deposited into a building fund to be held by the Santa Clara County Treasurer, as required by the California Education Code, and (4) the Superintendent of the District shall cause an annual report to be filed with the District Board, which report shall contain pertinent information regarding the amount of funds collected and expended, as well as the status of the projects listed in this measure, as required by Sections 53410 and 53411 of the Government Code.

NO TEACHER OR ADMINISTRATOR SALARIES

Proceeds from the sale of bonds authorized by this measure shall be used only for the purposes specified in Article XIII A, Section 1(b)(3), those being for the construction, reconstruction, rehabilitation, or replacement of school facilities, including the furnishing and equipping of school facilities, and the acquisition or lease of school facilities, and not for any other purpose, including teacher and administrator salaries and other school operating expenses.

STATE MATCHING FUNDS

The following statement is included in this measure pursuant to Education Code Section 15122.5: Approval of this measure does not guarantee that the proposed project or projects that are the subject of bonds under this measure will be funded beyond the local revenues generated by this measure. The District's proposal for the project or projects described below may assume the receipt of matching state funds, which, if available, could be subject to appropriation by the Legislature or approval of a statewide bond measure.

INFORMATION ABOUT ESTIMATES AND PROJECTIONS INCLUDED IN BALLOT

Voters are informed that any estimates or projections in the bond measure or ballot materials, including relating to estimated rates of *ad valorem* property taxes, the duration of issued bonds and related levies and collections of *ad valorem* property taxes are provided as informational only and are not binding on the District. Such amounts are estimates and are not maximum amounts or limitations on the terms of the bonds, the rate or the duration of the tax supporting repayment of issued bonds. Such estimates depend on numerous variables which are subject to variation and change over the term of the District's overall facilities and bond financing plan, including but not limited to the amount of bonds issued and outstanding at any one time, the interest rates applicable to issued bonds, market conditions at the time of sale of the bonds, when bonds mature, timing of project needs and changes in assessed valuations in the District.

While estimates and approximations are provided based on information currently available to the District and its current expectations, such estimates and approximations are not limitations and are not binding upon the District. In addition, the abbreviated and condensed statement of the bond measure presented to voters which is subject to a word count limitation imposed by State law does not limit the scope and more complete meaning of the measure provided in this Full Text of Bond Measure, the Resolution and related ballot materials.

Furthermore, the District currently expects that bonds issued pursuant to this measure will not increase the cumulative tax rate supporting District bonds above the 2025-26 tax rate,

although the final maturity of outstanding bonds will be extended by this measure. Notwithstanding the foregoing, voters are informed that general obligation bonds authorized by this measure are secured by an *ad valorem* tax unlimited as to rate or amount under State law. Although the current expectation is that the cumulative tax rate for bonds will not be increased by this measure, voters are informed that this expectation does not result in a cap or limitation on the tax levies required to amortize bonds authorized hereby. The District cannot anticipate all events which could result in assessed valuation changes including declines which may result in levies following bond issuance during the term of the bonds that are higher than the rate described in this section.

BOND PROJECT LIST

School Facility Project List. The items presented on the following list are the specific types of projects authorized to be financed with voter-approved bond proceeds. Examples included on this list are not intended to limit the broader types of projects described and authorized by this measure. The authorized projects are:

- Replace, repair, modernize deteriorating roofs, leaking pipes, outdated plumbing, sewer and gas lines, waterlines, valves, heating, cooling (HVAC), ventilation systems, and electrical mains and distribution systems;
- Acquire, install, and/or upgrade campus safety and security systems, including intercom and emergency communications systems, lighting, bell and fire and life safety systems, installing additional fencing and controlled access gates, upgrading door locks and point of entry access;
- Construct, expand, retrofit, and equip classrooms, facilities, and learning spaces for special education, counseling, wellness centers, learning resource centers, and other student support facilities;
- Renovate, repair, and modernize classrooms and other school facilities, including flooring, windows, window coverings, doors, lighting, interior and exterior finishes, and paint;
- Construct, renovate, furnish, and equip classrooms, labs, and instructional spaces supporting Science, Technology, Engineering, Arts and Mathematics (STEAM) instruction;
- Acquire, install, repair and modernize restrooms, drinking fountains, and hydration stations;
- Provide adequate furniture and equipment for all classrooms;
- Remove or replace aging portable buildings and classrooms with new permanent construction;
- Renovate, expand, modernize and construct school libraries, labs, workshops and makerspaces;
- Construct, modernize and equip learning and play areas for preschool, transitional kindergarten and kindergarten;
- Improve, replace, modernize and/or upgrade asphalt, concrete and paved surfaces, including drop-off and pick-up areas, outdoor learning areas, pedestrian walkways and parking lots;

- Modernize, retrofit, and equip cafeterias, food service facilities, multipurpose rooms, and student common areas;
- Construct, renovate, repair, replace, and modernize playgrounds, athletic fields, gymnasiums, locker rooms and other indoor and outdoor physical education and related improvements;
- Improve, upgrade and expand electrical, communication, network and technology infrastructure, including wiring, hardware, software, computers, devices and related equipment;
- Make health and safety improvements, such as installing necessary seismic reinforcements, repairing termite damage, and repairing and/or replacing aging building materials, including the removal of hazardous materials identified either prior to or during renovations;
- Federal and State-mandated Americans with Disabilities Act (ADA) accessibility upgrades district-wide, including site access, walkways, parking, staff and student restrooms, relocation of some existing electrical devices, drinking fountains, playground equipment, and classrooms.

Incidental Expenses. Each of the bond projects described in this Bond Project List includes the costs of furnishing and equipping such facilities, and all costs that are incidental but directly related to the types of projects described above. Examples of incidental costs include, but are not limited to: costs of design, engineering, architect and other professional services, facilities assessments, inspections, site preparation, utilities, landscaping, bond project construction management, administration and other planning and permitting, legal, accounting and similar costs; independent annual financial and performance audits; a customary construction contingency; demolition and disposal of existing structures; the costs of interim housing and storage during construction including relocation and construction costs incurred relating to interim facilities; the preparation or restoration of construction, renovation or remodeling; rental or construction of storage facilities and other space on an interim basis for materials and other equipment and furnishings displaced during construction; costs of relocating facilities and equipment as needed in connection with the projects; interim classrooms and facilities for students, administrators, and school functions, including modular facilities; federal and state-mandated safety upgrades; addressing unforeseen conditions revealed by construction/modernization and other necessary improvements required to comply with existing building codes, including the Field Act; access requirements of the Americans with Disabilities Act; and costs of the election; bond issuance costs; and project administration during the duration of such projects, as permitted by law.

Furnishing and Equipping. Each project is assumed to include its share of furniture, fixtures, equipment, architectural, engineering, and similar planning costs, program/project management, staff training expenses, and a customary contingency for unforeseen design and construction costs. In addition to the listed projects stated above, the list also includes the acquisition of a variety of instructional, maintenance and operational equipment, including the reduction or retirement of outstanding lease obligations and interim funding incurred to advance fund projects from the list; installation of signage and fencing; payment of the costs of preparation of all facility planning, facility studies, assessment reviews, facility master plan preparation and updates, environmental studies (including environmental investigation, remediation and monitoring), design and

construction documentation, and temporary housing of dislocated District activities caused by construction projects. The upgrading of technology infrastructure includes, but is not limited to, computers, projectors, portable interface devices, servers, switches, routers, modules, sound projection systems, printers, digital white boards, document projectors, telephone system, call manager, and network security/firewall, wireless technology systems, and other miscellaneous equipment and software.

Scope of Projects. Bond proceeds will be expended in accordance with State law on the construction, modernization, reconstruction, rehabilitation, replacement, equipping, furnishing or otherwise improving school facilities of the District, as set forth on the foregoing Project List. Additionally, pursuant to State law, funds may be utilized for the acquisition or lease of real property for school facilities, and not for any other purpose, including teacher and administrator salaries or other school operating expenses, in compliance with California Constitution Article XIIIA, Section 1(b)(3). This measure authorizes bond projects to be undertaken at all current and future District sites, properties and campuses.

Alterations to Scope; New Construction. The scope and nature of any of the specific projects described above may be altered by the District as required by conditions that may arise during the course of design and construction. In the event that a modernization or renovation project is more economical for or otherwise determined by the Board to be in the best interests of the District to be undertaken as new construction, this bond measure authorizes said new construction including land acquisition, relocation and construction at a new or alternative site, and/or demolition and reconstruction and/or repurposing on the original site, including an expanded site, and all costs relating thereto. In addition, this measure authorizes the acquisition of real property, including necessary rights-of-way or other real property interests, required to expand District facilities, to provide access to schools or other District facilities, or to provide additional school or related facilities. For any project involving rehabilitation or renovation of a building or the major portion of a building, the District shall be authorized to proceed with new construction instead if the Board of Trustees determines that replacement and new construction are more economically practical than rehabilitation and renovation, considering the building's age, condition, expected remaining life, and other relevant factors.

Interim Financing Included; Joint-Use Projects Authorized. Authorized projects include paying and/or prepaying interim or previously obtained financing for the types of projects included on the Bond Project List, such as bond anticipation notes, and include prepayment of lease payments to acquire title to facilities and/or equipment previously financed. Projects may also be undertaken on a joint-use basis with other public entities.

Bond Project List Not in Order of Priority; Board Determines Prioritization. Approval of this bond measure does not guarantee that the proposed projects will be funded beyond the local revenues generated by the measure. The District's capital needs currently exceed the amount of bonds the voters are being asked to authorize. The order in which particular projects are listed is not intended to suggest priority for funding or completion, and itemization of projects in the list above does not guarantee that all such projects will be undertaken. Project priorities will be determined by the Board of Trustees. The ability of the District to undertake and complete the listed projects is subject to numerous variables, including the adequacy and availability of sufficient funding sources. The District is unable to anticipate all unforeseen circumstances that may prevent some of the projects listed above from being undertaken or completed.

Interpretation. The terms of this bond measure and the words used in the Bond Project List shall be interpreted broadly to effect the purpose of providing broad and clear authority for the officers and employees of the District to provide for the school facilities projects the District proposes to finance with the proceeds of the sale of bonds authorized by this proposition within the authority provided by law, including Article XIIIA, Section 1(b)(3) of the California Constitution, Education Code Section 15000 *et seq.* and the Strict Accountability in Local School Construction Bonds Act of 2000. Words used in the Bond Project List, such as repair, improve, upgrade, expand, modernize, renovate, and reconfigure are used to describe school facilities projects in plain English but are not intended to expand the nature of such projects beyond what is authorized by law. As such, in accordance with legal requirements, the Bond Project List does not authorize, and shall not be interpreted to authorize, expending proceeds of the sale of bonds authorized by this proposition for current maintenance, operation, or repairs.

Severability. The District Board hereby declares, and the voters by approving this Bond Measure concur, that every section and part of this bond proposition has independent value, and the District Board and the voters would have adopted each provision hereof regardless of every other provision hereof. Upon approval of this measure by the voters, should any part be found by a court of competent jurisdiction to be invalid for any reason, all remaining parts hereof shall remain in full force and effect to the fullest extent allowed by law, and to this end the provisions of this bond measure are severable.

The Full Text of Measure to be printed in the voter guide ends at the above line.

APPENDIX B

ABBREVIATED FORM OF BOND MEASURE

With funds that cannot be taken by the State or Federal government, shall Alum Rock Union Elementary School District's measure to repair leaky roofs and plumbing; replace heating, ventilation, and air conditioning; and upgrade emergency communication and security systems be adopted, authorizing $100 million of bonds with legal rates, without increasing current tax rates, average levies below $26 per $100,000 of assessed valuation (raising $6.3 million annually while outstanding), audits, independent oversight, and disclosure of all spending?

Bonds—Yes Bonds—No

APPENDIX C

TAX RATE STATEMENT

The Tax Rate Statement to be printed in the voter guide starts below the line.

TAX RATE STATEMENT
REGARDING PROPOSED
ALUM ROCK UNION ELEMENTARY SCHOOL DISTRICT
GENERAL OBLIGATION BONDS

An election will be held in the Alum Rock Union Elementary School District (the "District") on November 3, 2026, to authorize the sale of up to $100,000,000 in bonds of the District to finance school facilities as described in the measure. If such bonds are authorized and sold, principal and interest on the bonds will be payable only from the proceeds of *ad valorem* tax levies made upon the taxable property in the District. The following information is provided in compliance with Sections 9400-9404 of the Elections Code of the State of California. Such information is based upon the best estimates and projections presently available from official sources, upon experience within the District, and other demonstrable factors.

Based upon the foregoing and projections of the District's assessed valuation, the following information is provided:

1. The best estimate of the average annual tax rate which would be required to be levied to fund this bond issue over the entire duration of the bond debt service, based on a projection of assessed valuations available at the time of filing of this statement, is $25.52 per $100,000 of assessed valuation. The final fiscal year in which the tax is anticipated to be collected is 2053-54.

2. The best estimate of the highest tax rate which would be required to be levied to fund this bond issue, based on a projection of assessed valuations available at the time of filing of this statement, is $30.00 per $100,000 of assessed value. It is estimated that such rate would be levied starting in fiscal year 2033-34 and following.

3. The best estimate of the total debt service, including the principal and interest, that would be required to be repaid if all the bonds are issued and sold is approximately $170 million.

Voters should note the estimated tax rate is based on the assessed value (not market value) of taxable property on the County's official tax rolls. Property owners should consult their own property tax bills and tax advisors to determine their property's assessed value and any applicable tax exemptions.

The attention of all voters is directed to the fact that the foregoing information is based upon projections and estimates only, which amounts are not maximum amounts and are

not binding upon the District. The actual debt service, tax rates and the years in which they will apply may vary from those used to provide the estimates set forth above, due to factors such as variations in the timing of bond sales, the par amount of bonds sold and market interest rates available at the time of each sale, actual assessed valuations over the term of the bonds, and other factors. The date and amount of bonds sold at any given time will be determined by the District based on the need for project funds and other considerations. The actual interest rates at which the bonds will be sold will depend on conditions in the bond market at the time of sale. Actual future assessed valuations will depend upon the amount and value of taxable property within the District as determined by the County Assessor in the annual assessment and the equalization process.

By: _____
Superintendent
Alum Rock Union Elementary School District

The Tax Rate Statement to be printed in the voter guide ends at the above line.